

favour (*c*). And *à fortiori*, this is the case if the payment of the debt is to be made only on the request of the settlor (*d*). But, of course, the trust cannot be revoked by the settlor, so as to defeat or prejudice what the trustees may have done previously in the due execution of the trust (*e*).

3. **Garrard v. Lauderdale.**—In *Garrard v. Lauderdale*, the Duke of York, by indenture between himself of the first part, trustees of the second part, and the creditors of the third part, conveyed certain property to trustees upon trust for his creditors, and upon the execution of the deed a circular to that effect was sent to each of the creditors. Here there was ground for contending that, as the creditors had been induced by the notice to forbear suing the settlor, they had acquired a right to the execution of the trust, but Sir L. Shadwell, observing that the receipt of the circular was not admitted, and that, if received, yet the creditors had not refrained from suing, as they had proved against the Duke's estate, decided that the creditors had no equity to enforce the trust (*f*), and the decree, on appeal to Lord [\*517] Brougham, was affirmed (*g*). The authority, \* however, of this case has, on several occasions, been questioned (*a*); and Lord St. Leonards observed he should be sorry to have it understood that a man may create a trust for creditors, communicate it to them, and obtain from them the benefit of their lying by until perhaps the legal right to sue was lost, and then insist that the trust was wholly within his power (*b*). There can be little doubt that upon the general principles of equity the settlor, by giving notice to the trustees, and by subsequent conduct, may con-

(*c*) *Gibbs v. Glamis*, 11 Sim. 584; *Simmonds v. Palles*, 2 Jon. & Lat. 489; and see *Synnot v. Simpson*, 5 H. L. Cas. 121.

(*d*) *Evans v. Bagwell*, 2 Conn. & Laws. 612.

(*e*) *Wilding v. Richards*, 1 Coll. 655, see 659; and see *Kirwan v. Daniel*, 5 Hare, 493.

(*f*) 3 Sim. 1.

(*g*) 2 R. & M. 461; and see *Cornthwaite v. Frith*, 4 De G. & Sm. 552; *Stone v. Van Heythuysen*, Kay, 727.

(*a*) See *Acton v. Woodgate*, 2 M. & K. 495; *Kirwan v. Daniel*, 5 Hare, 499; *Simmonds v. Palles*, 2 Jon. & Lat. 495, 504; *Siggers v. Evans*, 6 Ell. & Bl. 367. [But see *Johns v. James*, 8 Ch. D. 744, where the Court of Appeal approved of and followed *Garrard v. Lauderdale*; *Montefiore v. Browne*, 7 H. L. Cas. 241.]

(*b*) *Browne v. Cavendish*, 1 Jon. & Lat. 635; 7 Ir. Eq. Rep. 388.